

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

KASSANDRA VELASQUEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
MARVIN JEANBAPTISTE, Shield No. 11466, and
NYPD POLICE OFFICERS JOHN AND JANE DOES
NUMBERS ONE THROUGH TEN,

Defendants.

SUMMONS

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 28, 2023

Yours, etc.

Cary London, Esq.

Cary London, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER MARVIN JEANBAPTISTE, Shield No. 11466, NYPD 34th
Precinct; 4295 Broadway, New York, NY 10033

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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KASSANDRA VELASQUEZ,

VERIFIED COMPLAINT

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER
MARVIN JEANBAPTISTE, Shield No. 11466, and
NYPD POLICE OFFICERS JOHN AND JANE DOES
NUMBERS ONE THROUGH TEN,

Plaintiff designates New York
County as the place of trial.

Defendants.
----- X

Plaintiff KASSANDRA VELASQUEZ, by her attorneys, Shulman-Hill, PLLC, as and
for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On September 14, 2021, at approximately 3:55 a.m., Plaintiff KASSANDRA VELASQUEZ, while lawfully in the vicinity of 565 West 207th Street, County of New York, State of New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was subjected to the use of excessive force in her unlawful arrest, as well as suffered mental and emotional injury as a result. Plaintiff was subjected to unlawful imprisonment for approximately twenty (20) hours before she was finally released. All charges against the Plaintiff were dismissed and sealed on or around December 17, 2021. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, and fabricated evidence against Plaintiff in violation of the Fourth, Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Kassandra Velasquez is a resident of the state of New York.

3. NYPD Police Officer Marvin Jeanbaptiste, Shield No. 11466, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. NYPD Police Officer Marvin Jeanbaptiste, Shield No. 11466, is being sued in his individual and official capacities.

5. NYPD Police Officer Marvin Jeanbaptiste, Shield No. 11466, was at all times relevant herein assigned to the NYPD 34th Precinct.

6. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

7. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

8. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

9. On September 14, 2021, at approximately 3:55 A.M., Plaintiff was lawfully in the vicinity of 565 West 207th Street, County of New York, State of New York, when she was subjected to an unlawful stop, question, frisk, search, false arrest, false imprisonment, and denial of various federal constitutional rights by the defendant NYPD police officers.

10. At the aforementioned place and time, the plaintiff was attending a party with her boyfriend at a restaurant, 207 Prime Bar and Grill.

11. The plaintiff had briefly left the party to go back to her apartment to retrieve her phone, and had then returned to the restaurant.

12. When the plaintiff arrived at the restaurant, there was a verbal dispute between Plaintiff and the doorman, in which uniformed NYPD Defendant Officers approached.

13. It was at this time that defendant officers began to arrest the plaintiff, restraining her with metal handcuffs and shackling her feet.

14. The Defendant Officers threw Plaintiff to the ground, causing physical injury to her arms, elbow, face, and wrists.

15. Plaintiff did not resist arrest.

16. Plaintiff immediately complained about the tightness of her wrist, and requested the handcuffs be loosened.

17. The handcuffs were never loosened, thereby causing serious physical injury to her left wrist.

18. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did defendant NYPD police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

19. At no point did defendant NYPD police officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

20. Nevertheless, Plaintiff was unlawfully arrested by defendant officers, restrained with metal handcuffs and shackles, placed in the back of an NYPD vehicle, and transported to an NYPD Police Station against her will; upon information and belief, the NYPD 34th Precinct.

21. After Plaintiff was fingerprinted and photographed at the precinct, she was transported to Mount Sinai Hospital to be treated for her injuries.

22. During her time at the hospital, the plaintiff was forced to use the restroom with the door open as a male defendant officer watched her. The plaintiff requested a female officer escort several times, but her requests were denied.

23. After several hours at Mount Sinai hospital, the plaintiff was transported to Manhattan Central Bookings.

24. Upon information and belief, during her time in custody, defendant Officers falsely communicated, or had communicated on their behalf, allegations that Plaintiff had committed a crime to the New York County District Attorney's Office, to wit: Assault and other related charges.

25. After approximately twenty (20) hours in unlawful custody, the plaintiff was arraigned in Criminal Court, charged with crimes she did not commit, and released on her own recognizance.

26. The false charges made against the plaintiff were dismissed and sealed in their entirety on or around December 17, 2021.

27. After Plaintiff was released from custody, she went back to New York Presbyterian, to be further treated for her injuries caused by the Defendant Officers.

28. Plaintiff was given a cast for approximately 2 months for her left wrist, and still goes to physical therapy.

29. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

30. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

66. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

67. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

68. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

69. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the United States Constitution.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

70. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

71. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

73. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

74. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

75. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the United States Constitution.

76. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force

77. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

78. The use of excessive force by defendants by, amongst other things, seizing and tightly handcuffing and shackling her, constituted objectively unreasonable physical seizures of Plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

FIFTH CAUSE OF ACTION

Failure to Intervene

79. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

80. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene

on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

81. Defendants failed to intervene to prevent the unlawful conduct described herein.

82. As a result of the foregoing, Plaintiff suffered significant mental and emotional injuries, her liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subject to other physical constraints.

83. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the United States Constitution.

84. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

85. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

86. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

87. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

88. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

89. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

90. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of her constitutional rights.

SEVENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

91. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

92. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against her by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

93. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

94. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

95. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

96. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York

March 28, 2023

Yours, etc.


Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER MARVIN JEANBAPTISTE, Shield No. 11466, NYPD 34th
Precinct; 4295 Broadway, New York, NY 10033

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
March 28, 2023

Cary London, Esq.
CARY LONDON, ESQ.